BRIEFING · PUBLIC REALM · WATER · CLIMATE ADAPTATION

We don't fund the drains. Then we pay for the flood. Who pays to fix it?

Northern Ireland's sewers, roads, rivers and flood defences are failing for the same reason: we treat looking after them as optional, then pay many times over when they break. A duty to maintain them is half the answer. This piece is about the other half: who pays.

IN NUMBERS

≈100
places where new homes are restricted because the sewers are full

≈15,000
homes held back by wastewater limits (DfI)

≈£7bn
NI Water estimate of wastewater investment needed

£68m
road maintenance budget against ≈£250m a year needed

≈45,000
properties in floodplains; only 1 flood scheme in 5 on time

23 of 37
Lough Neagh actions complete; the lough supplies ≈40% of drinking water

> The figures behind this briefing, with every table downloadable as CSV: **robertjpark.co.uk/tools/dashboards/ni-public-realm-water-roads.html**

Last month, Storm Boelo put Largs Main Street under water, two years after its seawall was rebuilt. In Largs flooded this morning. Nobody is to blame. That is the problem. I argued that the Public Realm Bill should be built around a duty to provide, not a hunt for blame, because blame rarely survives a courtroom and the evidence on flood defences is clear: they are under-funded, and everyone admits it.

But a duty without money, as Spain's Ombudsman found with its unenforced wildfire plans, is a letter nobody answers. So this piece follows the money. It looks past flooding to the rest of Northern Ireland's public realm, and asks how we would actually pay to put it right.

In October 2023, floods went through Newry, Downpatrick and Portadown. The Executive found £15 million in emergency support within weeks, followed by grants of up to £100,000 a business. Nobody argued that it shouldn't. That is the pattern: the public realm is cheap to neglect and expensive to repair, and our budgets only count the second bit.

The evidence in Northern Ireland

Sewers have become a planning constraint. In March 2024 the NI Audit Office reported that development applications couldn't be approved, or were restricted, in about 100 areas, including 25 cities and towns, because the wastewater system had no room. NI Water's own capacity lists show about 66 treatment works at or over capacity and about 107 sewer networks under constraint. The Department for Infrastructure puts the homes held back at around 15,000. NI Water estimates it needs about £7 billion for wastewater capacity, compliance and resilience. The £1.9 billion Belfast Living With Water programme is largely on hold.

Storm overflows are spilling. NI Water has 2,458 storm overflows. It has modelled about half, and around 37% of those are unsatisfactory. Monitoring is due to reach only about 30% of them by spring 2027.

Flood defences are falling behind. I set out the evidence in the Largs piece. The short version, from the NI Audit Office in June: about 45,000 properties in floodplains, spending up 73% in four years, and still only one flood scheme in five finishing on time.

Roads are wearing out. An independent assessment for DfI puts the need for structural road maintenance at about £190 million a year, plus about £60 million for routine work. The opening budget this year was £68 million. The Infrastructure Minister reported 49,000 road defects in three months.

Lough Neagh, which supplies about 40% of our drinking water, has had three years of major algal blooms. DAERA names nutrients from farms, wastewater works, septic tanks and industry, record water temperatures and zebra mussels. Of its 37 actions, 23 are complete. The Minister has said recovery will take decades.

Adaptation has been slow. The Climate Change Committee's 2023 progress report on Northern Ireland found only limited evidence of delivery and unacceptably large data gaps. NICCAP3, our third adaptation programme, was published in March 2026, almost two years after the second ended. The CCC's latest UK-wide climate risk assessment, in May, says storm rainfall could rise by up to 60% by 2050.

It isn't just Northern Ireland

UK public investment ran at about 4% of GDP up to the 1970s and has averaged about 1% this century, on the Office for Budget Responsibility's measure. IPPR found UK total investment the lowest in the G7 in 24 of the 30 years to 2022. Spending is now rising again, to around 2.5% of GDP, but the Institute for Fiscal Studies notes that the extra money leans heavily to defence and net zero, and transport does poorly.

The Treasury's own review of the Green Book, its appraisal rulebook, didn't find conclusive proof that its method is biased against regions. But it did find too little weight on place, over-reliance on benefit-cost ratios and arbitrary thresholds, and weak handling of change that transforms a place. A new, shorter Green Book followed in February 2026. A recommendation to lower the discount rate, which would give more weight to long-lived assets like drains and flood defences, is still waiting for a Treasury answer. None of the four place-based pilots is in Northern Ireland.

Three scenarios

These are illustrative scenarios for Northern Ireland to the mid-2030s, based on the work behind my Public Realm Bill. They are not forecasts.

1. Patch and pay. Year-by-year budgets continue. Capital goes to whatever broke last winter. Every flood brings an emergency fund, every algal bloom a new action plan, every held-back housing scheme a row. The bill is paid anyway, in emergency grants, insurance, lost homes and lost investment, but never planned for. This is roughly where we are.

2. Capital catch-up. The Executive and Treasury find a large one-off settlement for NI Water and flood defences. That would help, and the Utility Regulator has already proposed funding the next water price control, from April 2028, to what NI Water's legal duties require. But without a duty to keep things improving and a stable source of money, the catch-up decays. In fifteen years we are back where we started.

3. Duty and entitlement. Public bodies responsible for shared spaces have a duty to improve them continuously, and every community has a minimum public realm entitlement: working drainage, safe footways, clean streets, accessible green space and somewhere to report a problem and get an answer. Appraisal gives proper weight to long-lived assets and to places. And some of the land value that public investment creates is captured to pay for it. This is what the Public Realm Bill I have drafted sets out to do.

What the Bill would change

The Largs piece set out the duties: to maintain public realm assets to a published standard, to keep public asset registers, and to plan for emergencies. I'm reworking the full draft, 215 clauses and 26 Schedules, into a shorter Public Realm (Framework and Entitlement) Bill. Here are the parts that decide whether those duties can be paid for:

1. **A continuous improvement duty.** Not just keeping things at a minimum, but showing they are getting better, with published measures that residents would recognise.
2. **Minimum public realm entitlements**, so that a town's drainage or a park's upkeep isn't decided by whichever budget line was squeezed hardest that year.
3. **A corrected appraisal method** for public realm investment, giving long-lived assets and place-based benefits their real weight.
4. **Land value capture.** England raised about £7 billion from developer contributions in 2018-19 through planning agreements and the Community Infrastructure Levy, and London is putting around £7 billion into Crossrail through a business rate supplement and a mayoral levy. Northern Ireland has no Community Infrastructure Levy and relies on case-by-case Section 76 agreements. DfI consulted on developer contributions for wastewater in 2025; the policy is still being developed.
5. **Fiscal devolution** so that places that capture value can keep and spend it.

You don't need to wait for legislation to start. Councils can adopt a continuous improvement standard and a published local entitlement now, and every party standing in the May 2027 Assembly and council elections could commit to them.

The strongest counter-argument

"Money is already going up. NI flood spending rose 73% in four years, and the Audit Office found most schemes still finished late. The problem is delivery, not law. A new statutory duty would add rigidity and legal challenge, not engineers. And Northern Ireland's real funding gap is self-inflicted: we don't charge households for water."

There is something in each point. Delivery capacity is weak, and the water charges question is a legitimate debate for Northern Ireland's parties to have openly. But stop-start funding is what destroys delivery capacity. Engineers, contractors and supply chains don't build up around budgets that might vanish next spring. A long-term duty with stable funding is the cure for poor delivery, not the cause of it.

What would change my mind

Evidence that year-by-year funding has produced steady improvement anywhere in the public realm over a decade. I haven't found it.

Sources

- Funding water infrastructure in Northern Ireland (NI Audit Office, 28 March 2024)
- Capacity information (NI Water)
- Storm overflows (NI Water)
- NI Water updates Belfast City Council on investment and wastewater capacity (Water Magazine, 29 January 2026)
- Stormont urged to unblock Northern Ireland's wastewater crisis (Water Magazine, 18 June 2026)
- Utility Regulator price control decision (August 2026)
- Flood Risk Management in Northern Ireland (NI Audit Office, 16 June 2026)
- Flood support programme for businesses (Department for the Economy, 21 February 2024)
- Details of £15m flood support allocation (ITV News, 9 November 2023)
- Road maintenance funding shortfall (agendaNi, 22 April 2026)
- Update on road infrastructure projects (Department for Infrastructure, 9 December 2025)

- Action being taken to address issues at Lough Neagh (DAERA, updated 11 August 2026)
- Adapting to climate change: progress in Northern Ireland (Climate Change Committee, 20 April 2023)
- Northern Ireland's third Climate Change Adaptation Programme published (DAERA, 19 March 2026)
- Muir welcomes launch of climate impact assessment (DAERA, May 2026)
- Public sector net investment (Office for Budget Responsibility, March 2020)
- Investment in UK lowest in G7 (IPPR, 18 June 2024)
- Spending Review 2025 (Institute for Fiscal Studies)
- Green Book Review 2025: findings and actions (HM Treasury, 11 June 2025)
- Green Book Review 2025: one year on (HM Treasury, 30 June 2026)
- The value and incidence of developer contributions in England 2018/19 (MHCLG, August 2020)
- Paying for Crossrail: business rate supplement (Greater London Authority)
- Developer Contributions Framework (Belfast City Council)
- Consultation responses report: developer contributions for wastewater infrastructure (Department for Infrastructure, 19 March 2026)

Robert J. Park is an independent environment, carbon and public affairs consultant based in Larne, Northern Ireland. robert@robertjpark.co.uk · robertjpark.co.uk · Facts checked to 2 November 2026. Scenarios are illustrative, not forecasts.